Rocky problem map

Companion to the final answer (*Rocky - LAWS1150 Mid-Term T3 2026.docx*, built from final.md). Body 1,495 words, 1,498 with the count line; 25 footnotes. Verifier on the markdown and on the .docx: 19 quotations, 0 FAIL, 1 expected CHECK (*Sundell* 327, a parser artefact) and 1 expected lint (*Niesmann* cited through *Masters*, which gives no pin). Readings are the source of truth throughout; slides and notes were background only.

1. Timeline: what happened and what each step settles

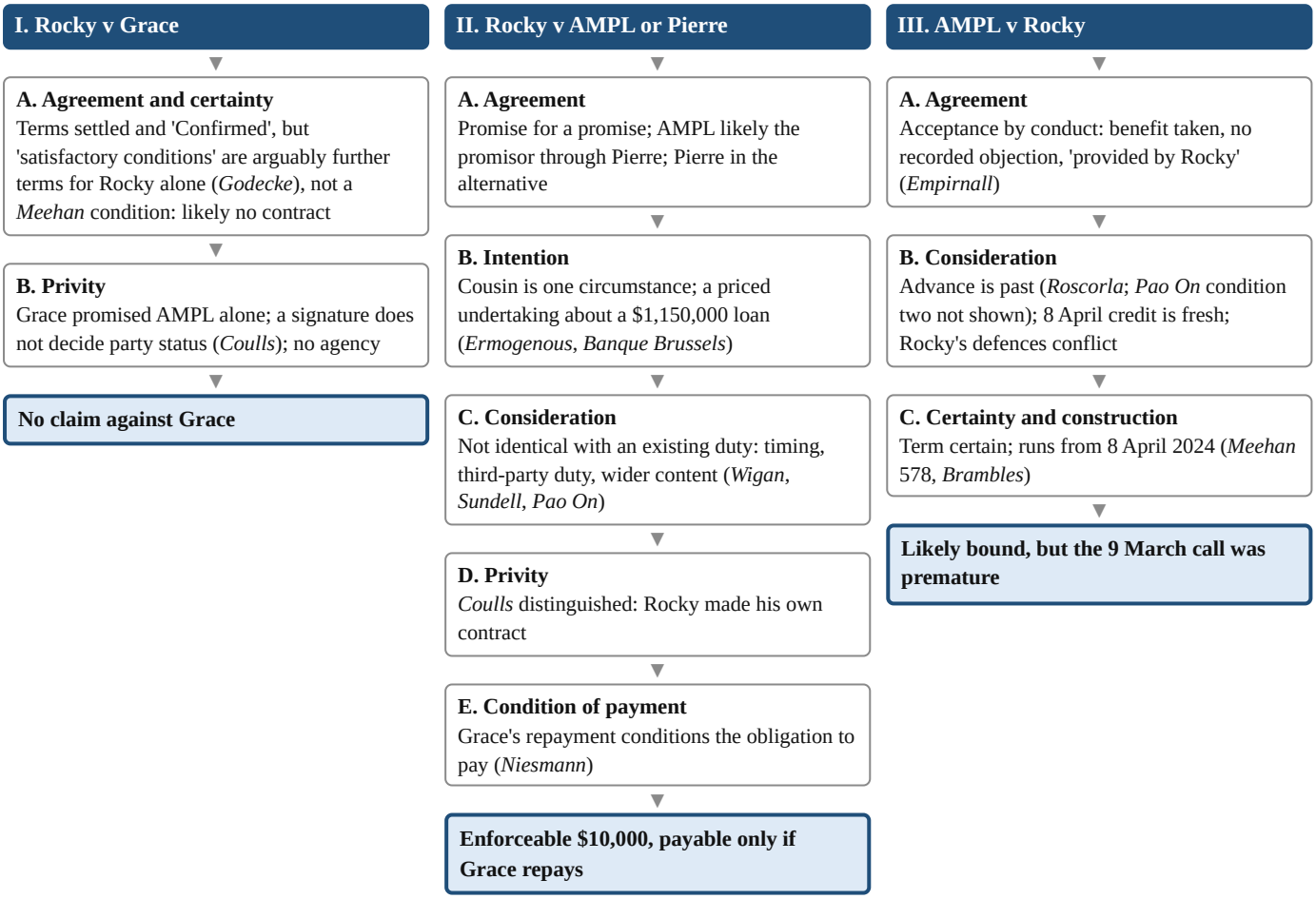
Date	What happened (the problem's words)	What it settles in the final
Since 2017	Grace and Rocky 'pursued various projects together since 2017 to stellar success'	Commercial history; background only
January 2020	'legally binding' Development Agreement; priority clause 'valid and binding'	No breach is stated, so no claim on it (I.B)
January 2024	Profit 'minimal'; Grace in 'significant financial difficulties'; he 'demanded Rocky's assistance'	Motive only
5 February 2024	Grace 'proposed that Rocky offer' a '$1 million dollar working capital loan for 2 years at 5% interest'; Rocky 'not interested in offering Grace a long-term loan'	A request for an offer, refused: nothing binding yet
12 February 2024	Rocky's email: 'I will lend $1 million to you by 15 February for 1 year at a rate of 5% interest subject to satisfactory conditions'; 'Please confirm agreement'. Grace: 'Mr Rocky, Confirmed.'	I.A: essential terms settled and 'Confirmed' would ordinarily accept, but the unspecified conditions leave terms for Rocky alone to settle: likely no contract
15 February 2024	The date Rocky was to lend by; nothing shows he lent	I.A: the no-contract finding protects Rocky, and gives him no claim
27 February 2024	'Rocky asked' AMPL to advance $1,150,000; 'Pierre agreed to provide the money to Grace'; advanced 'on the same day'	II.A: AMPL performed Pierre's agreement; III.B: a past act, with no understanding then that Rocky would guarantee it; III.C: AMPL's genesis fact
8 April 2024	Loan Agreement 'entered into' by AMPL and Grace: $1,150,000, 4% per annum, interest monthly, 'repayable at the expiry of 12 months'; clause that Rocky 'personally guaranteed repayment of the Loan'; Pierre 'expected Rocky to ensure' prompt payment; Rocky: 'I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan'; 'Pierre agreed and the clause was included in the Loan Agreement before it was signed by Grace and AMPL'	Part II: the $10,000 contract (agreement, intention, consideration, privity, condition). III.A: assent to the guarantee; III.B: fresh consideration; III.C: the term is created here
8 April 2024 to 8 February 2025	Grace made 'appropriate monthly repayments of the interest'; Rocky 'would check in consistently'	Later conduct: cannot construe the term (III.C)
13 February to 2 March 2025	Rocky asks 'when and how' the principal will be repaid; no reply	Later conduct
5 March 2025	Rocky's solicitor demands 'repayment of the principal amount under the Loan Agreement with AMPL'	I.B: Rocky is not a party to that contract; III.C: his own demand cannot construe the term
7 March 2025	Grace to Rocky: 'I never signed anything with you, so you can't enforce anything.' Grace to AMPL: 'I have until 8 April 2025 to repay'; 'if you don't leave off, I might not pay at all!' AMPL: the Loan 'was advanced on 27 February'	I.B: right result; III.C: the construction dispute; II.E: the risk that the $10,000 condition fails
9 March 2025	AMPL calls on 'the personal guarantee provided by Rocky'; Grace 'had not yet repaid'	Part III: Rocky is likely bound, but the call was likely premature

2. Who promised what to whom (final view)

Promise	By, to, when	Given in exchange	Final conclusion
Lend $1 million by 15 February for 1 year at 5%, 'subject to satisfactory conditions'	Rocky to Grace, 12 February 2024	Grace's 'Confirmed'	Likely no contract (I.A)
Repay $1,150,000 at the expiry of 12 months, interest at 4% monthly	Grace to AMPL, 8 April 2024	AMPL's advance and 12 months' credit	Binds Grace to AMPL; Rocky cannot enforce it (I.B)

Promise	By, to, when	Given in exchange	Final conclusion
Pay Rocky $10,000 'directly' once Grace repays	AMPL through Pierre (alternatively Pierre) to Rocky, 8 April 2024	Rocky's promise to ensure prompt payment	Likely enforceable; payable only if Grace repays (II)
Ensure Grace makes all payments promptly	Rocky to AMPL (or Pierre), 8 April 2024	The $10,000 promise	Binds Rocky; breached only if the 12 months ran from 27 February (III.C)
Guarantee 'repayment of the Loan'	Rocky to AMPL, 8 April 2024	AMPL's 12 months' credit to Grace; arguably the $10,000 promise	Likely accepted by conduct and supported; not callable before 8 April 2025 (III)

3. Structure of the final answer



4. Issue by issue, as argued in the final

I.A Agreement and certainty: did the 12 February exchange form a contract?

Rule (1) Lord O'Hagan, quoted by the whole Court in *Masters* 361: 'if any prospective contract, involving the possibility of new terms, or the modification of those already discussed, remains to be adopted, matters must be taken to be still in a train of negotiation' (W3 casebook 155). (2) Kitto J in *Placer* 356, quoted by Gibbs CJ in *Meehan* 581: a promisor with 'a discretion or option as to whether he will carry out' the promise makes no contract. (3) Gibbs CJ (581 to 582): that principle 'does not apply where the discretion or option of the contracting party relates ... only to the fulfilment of a condition upon which the contract depends'; Mason J (588 to 590): the purchaser 'must act honestly, or honestly and reasonably', which 'takes the case out of the principle' (W3 casebook 183 to 186). (4) Gibbs J in *Godecke* (646 to 647), obiter and tentative: it 'does not necessarily follow' that an agreement which 'left further terms to be settled by one of the parties' is concluded; there may be 'no concluded bargain if a vital matter ... has been left to the determination of one of the parties'; 'Perhaps it may be different' for 'subsidiary matters' (W3 casebook 189 to 190).

Grace Amount, date, term and rate were settled and 'Confirmed' answered 'Please confirm agreement'; the conditions were subsidiary or, as with the finance in *Meehan*, for Rocky to assess honestly.

Rocky 'satisfactory conditions' are not specified and identify no subject matter, so they are arguably further loan terms for Rocky alone to settle, not a condition whose fulfilment he would assess.

Decisive Whether Rocky lent depended on terms that he alone would settle, which is the *Godecke* case, not the *Meehan* one. (Gibbs CJ's own point in *Meehan*, that a condition within a party's power still binds, is why the final does not rely on the conditions deciding 'whether Rocky would lend at all'.)

Conclusion On balance, likely no contract. That protects Rocky, as nothing shows he lent by 15 February, but gives him no claim.
Further information what the conditions were; *Meehan*-type conditions would likely bind.

I.B Privity: can Rocky enforce the Loan Agreement (his 5 March demand)?

Rule Only a party can enforce a contract. Taylor and Owen JJ in *Coulls* (486 to 487): 'the mere fact that her signature appears does not make her a party; this is a question to be resolved upon a consideration of the written instrument itself'; 'there was no express promise by the company to pay royalties to the wife nor is it possible to imply such a promise' (W4 casebook 330 to 331). An agent must be 'purporting to act on behalf of the principal and not solely on their own behalf' (*Picwoods* [84] to [85], textbook 290).

Applied Grace promised repayment to AMPL alone; Rocky's request for the loan and the guarantee make him at most AMPL's promisor, not Grace's promisee. Grace's 'I never signed anything with you' reaches the right result. Nothing suggests AMPL lent as Rocky's agent.

Conclusion Rocky likely cannot enforce the Loan Agreement; the Development Agreement discloses no breach; any claim against Grace would likely fail.

II.A Agreement: was the $10,000 contract formed, and with whom?

Rule AMPL is bound if Pierre acted as its agent and purported to act for it (*Picwoods*); Sundberg J in *Pola*: 'the consent of the principal may be implied where he places another in such a situation that a reasonable man would understand the other to have the principal's authority to act on his behalf' (textbook 290 [11.80]).

Points to AMPL Rocky offered his promise for a promise to pay him $10,000 'directly', and 'Pierre agreed'. Pierre 'owned and controlled' AMPL; the meeting was at AMPL's office; AMPL performed his 27 February agreement the same day; his expectation concerned payments to AMPL.

Points to Pierre Rocky addressed Pierre as 'you'.

Conclusion AMPL likely the promisor, because Pierre spoke as its controller about its loan; sue Pierre in the alternative.

II.B Intention to create legal relations

Rule Rocky must prove it, objectively; in *Ermogenous* ([25] to [26]) the joint judgment noted the presumed 'family arrangements' and said 'we doubt the utility of using the language of presumptions in this context' (W3 casebook 137). Rogers CJ Comm D in *Banque Brussels* 523: 'If the statements are appropriately promissory in character, courts should enforce them when they are uttered in the course of business and there is no clear indication that they are not intended to be legally enforceable' (W3 casebook 144).

AMPL Pierre is 'Rocky's cousin'.

Rocky That is only one circumstance; the $10,000 paid for a specific undertaking about a $1,150,000 loan, with nothing indicating otherwise.

Conclusion Likely intention, because the commercial setting outweighs the family relationship; less clearly against Pierre personally.

II.C Consideration: was Rocky's promise to ensure prompt payment only an existing duty?

Rule Mason J in *Wigan* 594: a promise to perform an existing duty is no consideration, 'at least when the promise is made by a party to a pre-existing contract, when it is made to the promisee under that contract, and it is to do no more than the promisor is bound to do under the contract' (W2 casebook 131). *Sundell* 327: the supplier 'was bound to' do 'what was necessary to ensure that the goods were delivered', so its promise was 'identical' (W2 casebook 114). A promise to perform a duty owed to a third party 'may constitute good consideration' (casebook [4.300] 125, *Pao On* 631 to 632; Glidewell LJ in *Roffey* 15: 'a tripartite relationship'). Practical benefit (Santow J, *Musumeci* 747) needs, as element (ii), that B 'has reason to doubt whether A will, or be able to, complete his side of the bargain'.

AMPL As guarantor, Rocky already owed the duty.

Rocky Firstly, he promised before the Agreement was signed. Secondly, if Pierre promised personally, the duty was owed to a third party. Thirdly, ensuring all payments promptly, including monthly interest, differs from guaranteeing 'repayment of the Loan'. Were they identical, practical benefit would not assist, as nothing suggests AMPL had reason to doubt Rocky's performance.

Conclusion Likely consideration, because, unlike the *Sundell* promise, it was not identical with an existing obligation, even if the guarantee bound him first.

II.D Privity (only if 'the clause' is the $10,000 term)

Rule In *Coulls* the clause naming the wife only 'authorise[d]' payment to her (Taylor and Owen JJ 487); for McTiernan J it was a 'mandate' (482 to 483).

Applied Rocky gave his own promise for AMPL's promise to pay him 'directly'. On the other reading, the $10,000 promise stays oral and no privity question arises.

Conclusion *Coulls* distinguishable; privity likely no bar.

II.E Condition of payment: when is the $10,000 payable?

Rule *Masters* 361, describing *Niesmann*: the stipulation 'did not make the signing of a contract a condition of agreement, but made it a condition of the obligation to pay'.

Applied 'once Grace repays the Loan' makes repayment such a condition; if Rocky pays under the guarantee, Grace may never repay, given 'might not pay at all'.

Conclusion Enforceable $10,000, payable only if Grace repays.

III.A Agreement: is Rocky bound by the guarantee?

Rule 'The contract between A and B cannot impose obligations on C' (textbook 288, citing *Taddy*, cited by report only). McHugh JA in *Empirnall*: 'the silent acceptance of an offer is generally insufficient' (534), but an offeree who, 'knowing of the terms of the offer and the offeror's intention to enter into a contract, ... has exercised a choice and taken the benefit of the offer' may be bound; it is 'open to the tribunal of fact' (535) (W1 casebook 71 to 72).

Rocky His recorded words promised to ensure payment, not to guarantee it; the Agreement was 'signed by Grace and AMPL'.

AMPL He requested the loan, attended the settling of an Agreement naming him as guarantor, and raised no recorded objection; the facts call it 'the personal guarantee provided by Rocky'. If 'the clause' is the guarantee, it was arguably part of his $10,000 bargain; if it is the $10,000 term, Rocky's benefit was written into that Agreement.

Conclusion On balance, likely accepted by conduct, because he took a benefit tied to the Agreement without recorded objection. **Further information** whether he knew of, signed or expressly agreed to the guarantee.

III.B Consideration: is the guarantee supported?

Rule *Roscorla* 237: past consideration 'will support no other promise than such as would be implied by law'. Lord Scarman in *Pao On* 629 to 630: a past act counts only if done at the promisor's request, the parties 'understood that the act was to be remunerated', and payment would have been 'legally enforceable had it been promised in advance' (Pao On extract). Textbook 103 [4.80]: 'consideration given in return for a promise need not move to the promisor'. *Australian Woollen Mills* 456 (the whole Court): 'forbearance by a creditor in return for the debtor's promise to give security' (W2 casebook 101).

Applied 'Rocky asked' for the advance, but nothing shows an understanding on 27 February that he would guarantee it. On 8 April AMPL promised Grace 12 months' credit at 4%, unless the advance was already made on that term; if 'the clause' is the guarantee, AMPL also arguably promised Rocky $10,000 for it.

Conflict If 8 April created the term, as Rocky's timing argument requires, AMPL gave fresh consideration that day.

Conclusion Likely supported, because AMPL's 8 April promises, not the past advance, were given in exchange for it.

III.C Certainty and construction: was the 9 March call premature?

Rule Gibbs CJ in *Meehan* 578: 'If the court, in construing the contract, can decide which of the two possible meanings is that which the parties intended, there will be no uncertainty'. Heydon JA in *Brambles* 163: pre-contractual conduct is admissible on construction only 'if the contract is ambiguous' and it 'casts light on the genesis of the contract' (Ipp AJA 191: 'mutually known facts'); 164: 'post-contractual conduct is not admissible on the question of what a contract means' (W1 casebook 73).

Rocky The Agreement created the term; nothing shows a term was agreed on 27 February, when 'Pierre agreed to provide the money to Grace'.

AMPL The loan 'was recorded as $1,150,000', so the Agreement recorded money already lent, and the advance, known to all three, shows the term ran from 27 February.

Excluded Later conduct, including the interest payments and Rocky's own 5 March demand.

Conclusion Term certain, running from 8 April 2024, because the Agreement created the term and the advance shows only when the money was lent; 'recorded' describes the amount, not the start of the term. **Further information** whether the Agreement tied the term or interest to the advance; if it did, the call was timely and Rocky likely also breached his promise to ensure prompt payment.

Advice to Rocky He has no contractual claim against Grace. He likely holds an enforceable promise of $10,000 from AMPL (alternatively Pierre), payable only if Grace repays. He is likely bound by the guarantee, but its 12 months likely run from 8 April 2024, so he should resist AMPL's 9 March 2025 call; paying under the guarantee would probably mean the $10,000 condition is never fulfilled.

5. Footnote ledger

fn	Citation	Where in the readings; status	Supports
1	*Masters* 361, quoting *Rossiter* 1149 (Lord O'Hagan)	W3 casebook 155; the whole Court quoting a House of Lords speech	New terms to be adopted: still negotiating

fn	Citation	Where in the readings; status	Supports
2	*Meehan* 581 (Gibbs CJ), quoting *Placer* 356 (Kitto J)	W3 casebook 183; majority judgment	Illusory promise
3	*Meehan* 581 to 582 (Gibbs CJ), 588 to 590 (Mason J)	W3 casebook 183 to 186; two routes, both cited	Condition exception; honest assessment
4	*Godecke* 646 to 647 (Gibbs J)	W3 casebook 189 to 190; obiter, tentative	Further terms left to one party
5	*Coulls* 486 to 487 (Taylor and Owen JJ)	W4 casebook 330 to 331; majority	Only parties enforce; signature not decisive
6, 7	*Picwoods* [84] to [85]; Ibid	Textbook 290 fn 45	Agent must purport to act for the principal
8	*Pola* (Federal Court, Sundberg J) 12, quoted in Robertson and Paterson 289 to 290 [11.80]	Textbook 290	Implied consent of the principal
9	*Ermogenous* [25] to [26] (joint judgment)	W3 casebook 137	Onus, objectivity, presumptions doubted
10	*Banque Brussels* 523 (Rogers CJ Comm D)	W3 casebook 144; single judge	Business promises enforced
11	*Wigan* 594 (Mason J)	W2 casebook 131	Existing duty rule and its 'at least' limits
12	*Sundell* 327	W2 casebook 114 (note quoting the court); expected CHECK	'do what was necessary to ensure'
13	*Pao On* 631 to 632; *Roffey* 15 (Glidewell LJ)	Textbook fn 139; W2 casebook 119, 125	Duty owed to a third party
14	*Musumeci* 747 (Santow J)	W2 casebook 123	Practical benefit element (ii)
15	*Coulls* 487 (Taylor and Owen JJ), 482 to 483 (McTiernan J)	W4 casebook 329 to 331	The clause merely authorised payment
16	*Masters* 361, citing *Niesmann*	W3 casebook 155; expected lint (no pin)	Condition of the obligation to pay
17	*Taddy* (report only)	Textbook 288 fn 38	No burdens on non-parties
18	*Empirnall* 534 to 535 (McHugh JA)	W1 casebook 71 to 72	Silence; acceptance by taking a benefit
19	*Roscorla* 237; 114 ER 496	W2 casebook 112	Past consideration
20	*Pao On* 629 to 630	Pao On extract; pin from textbook fn 140	Past act exception
21	Robertson and Paterson 103 [4.80]	W2 textbook 103	Need not move to the promisor
22	*Australian Woollen Mills* 456	W2 casebook 100 to 101; the whole Court	Creditor's forbearance
23	*Meehan* 578 (Gibbs CJ)	W3 casebook 182	Certainty of an ambiguous term
24, 25	*Brambles* 163 (Heydon JA), 191 (Ipp AJA); Ibid 164	W1 casebook 73, 82	Genesis admissible; later conduct not on meaning

6. How the final was built: every agent, and what reached the final

Agent or round	What it did and thought	What the final took from it
Issue spotters A, B and C (independent)	Each built a quoted timeline, a promise map, every claim and defence, the planted facts and the doctrine each tests, two-sided issue analyses and a word budget. A walked every checklist line and register map; B wrote the setter's marking guide; C argued as opposing counsel for Grace, AMPL and Pierre.	The three-part claimant v defendant structure; the planted facts used ('subject to satisfactory conditions', 'the clause was included', 'recorded as', 'directly once Grace repays', 'I never signed', 'might not pay at all'); the two readings of 'the clause'
Source miners M1 to M4	Read every page of the readings for one cluster each (agreement; parties and privity; consideration; intention, certainty and construction) and banked verbatim passages with page, judge, status, the question answered, the next sentence and the side each helps.	Every rule in the final rests on a banked passage; the verifier corpus checks each quotation

Agent or round	What it did and thought	What the final took from it
Lead planner	Merged the three issue lists, resolved disagreements against the source text, fixed the judgment calls, and built argument tables (opponent's best argument, answer, decisive factor) with a sentence-level authority map.	The 'AMPL will argue ... Firstly ... Secondly ... Thirdly' and 'Grace will argue ... Yet ...' paragraphs
Drafters v1X and v1Y, each with a self-check against every lesson	Two independent full drafts to the plan, each verified to 0 FAIL.	Merged at triage
Marker panels on each draft	Examiners (v1X 87.5, v1Y 85), issue auditors, accuracy tracers and AGLC and style checkers; full-context auditors (v1X 50 sound, 23 not; v1Y 61 sound, 22 not) and source-completeness auditors. Key finds: *Coulls* used on the wrong side; *Wigan*'s 'at least' overread; *Meehan* distinguished on one judge's ground; *Brambles*' formation limb missed; acceptance-by-conduct authorities missing; the narrator twice says Rocky gave the guarantee.	All carried: *Coulls* now cuts both ways correctly; 'at least' kept; both *Meehan* judges cited; *Empirnall* decides III.A; 'provided by Rocky' used
Triage consolidator	Accepted, partly accepted or rejected every panel finding after reading the source; merged the drafts.	The first final
Cold examiner (first final)	89/100. Practical benefit never run; III.A's decisive step one sentence; prose dense.	Practical benefit now weighed in II.C; III.A rebuilt; prose cut
Blind A/B examiner	P (v2) 82 against Q (first voice rewrite) 77: P better on application, argument, conclusions, prioritisation, writing and structure; Q quoted authority 27 times (164 words) against P's 5.	Few, short quotations; analysis in own words
Tracer on P	11 problems, eg 'he never lent' is not in the facts; *Pola*'s qualifier dropped; *Empirnall*'s 'to the offeror' dropped; facts stated as fact.	'nothing shows he lent'; 'may be implied'; *Empirnall*'s knowledge and opportunity; hedged inferences
Sample papers A and C, marked cold	A 52 (a different paper) and C 62: flowery headings, stitched quotations, conclusions without reasons.	What to avoid
Your structure feedback	IRAC in every sub-issue; never a conclusion first; formation before privity; claimant v defendant with element headings; exact terms; no metaphor.	The v4 to v6 restructure
Round R on v6: examiner (84) and tracer (13 problems)	See the ledger below.	v7
Round S on v7: tracer and examiner (87)	Tracer: no certain error in law, facts, pins or quotations; one house AGLC point; four arguable points. Examiner: 87, with a plan it put at about 89.	v8, the final
Round S2 on v8 (focused tracer)	Cold check of only the v7 to v8 changes and the renumbered footnotes: no certain error. Three arguable points: III.A said flatly that Rocky 'obtained a right under that Agreement', though II.D says his right comes from his own contract; the 'is bound if' agency premise has no footnote of its own; 'the Agreement created the term' does not by itself fix the start date.	First point applied at no word cost ('Rocky's benefit was written into that Agreement'); second left (the house style cites the textbook only for 'quoted in'); third already covered by the further-information sentence

Round R ledger (v6 to v7)

ID	Finding	Disposition
W1	I.A concluded on acceptance before stating a rule	**Applied**: 'would ordinarily accept it'
W2, M1	Grace's best answer (honest assessment, *Meehan*; *Godecke*) never put	**Applied**
W3, W4, E7	Intention: heading restated; *Ermogenous* not applied; cousin not weighed	**Applied**: 'only one circumstance'
W5	II.C conclusion 'unless the guarantee bound him first' contradicted reason three	**Applied**: 'even if'
W6	II.D concluded before its reasons	**Applied**

ID	Finding	Disposition
W7, E5, M3	Forbearance rested on a dissent quoting *Currie*; the $10,000 as the guarantee's price unused	**Applied**: textbook [4.80] and *Australian Woollen Mills*; 'arguably promised Rocky $10,000 for it'
W8	III.B conclusion gave no reason	**Applied**
W9, M4	Rocky's own 5 March demand; *Brambles*' formation limb	**Partly**: the demand is named and excluded on meaning; the formation limb is not run, because the demand was made 'under the Loan Agreement' and so shows no 27 February contract
W10, W11	'finely balanced' repeated; check-ins irrelevant to 'ensure'	**Applied**: both cut
M2	Practical benefit	**Applied**: one sentence, element (ii)
M5	Why I.A matters to Rocky	**Applied**: 'That finding protects Rocky'
M6	'Potential project' and 'wait and see' contrast	**Rejected**: 22 words for the lowest-value point
E1, T3, T4	*Coulls* overstated ('wrong test'); I.B and III.A inconsistent on signature	**Applied**: 'a signature alone does not make one'
E2, T9	*Pola*'s 'may be implied' dropped	**Applied**
E3, T6	Lord O'Hagan's 'a dissatisfied party' turned into 'either party'	**Resolved**: his point restated as 'still negotiating' (v8)
E4	'appropriately' omitted from *Banque Brussels*	**Applied**
E6, T7	'never specified' is not in the problem	**Applied**: 'which the email does not specify'
E8, T13	Textbook author order; *Pola*'s court; *Roscorla*'s ER pin	**Confirmed**: publisher lists Robertson then Paterson; Federal Court confirmed; ER pin not in the materials, left
T1, T8	*Meehan* misdescribed as an 'external' condition; Gibbs CJ's route stated as the only one	**Applied**: both judges cited; v8 distinguishes on further terms
T2	*Empirnall* loosened and over-applied	**Applied**: knowledge, opportunity to reject, 'may be held'; knowledge left as further information
T5	The two readings of 'the clause' not reconciled	**Applied**: both run in III.A and III.B
T10, T11	'only' added to a fact; two rules without a Weeks 1 to 4 source	**Applied**: both removed
T12	Short titles used in the body but not defined	**Applied**

Round S ledger (v7 to v8)

From	Finding	Disposition
Tracer	Whole-Court judgments (*Masters*, *Woollen Mills*) named judges, against the house rule	**Applied**
Both	I.A's reason ('qualified whether Rocky would lend at all') is the feature *Meehan* held not fatal	**Applied**: distinguished as further terms for Rocky alone to settle, not a condition he assesses
Both	III.A overstated ('Either reading would strongly indicate his assent'); the $10,000 link to the guarantee is inference	**Applied**: sentence removed; 'arguably' added in III.A and III.B; reading (b) now 'Rocky's benefit was written into that Agreement'
Examiner	Add *Masters* for 'subject to'	**Applied**
Examiner	'requires more than guaranteeing' implies Rocky's words included a guarantee, against III.A	**Applied**: 'differs from'
Examiner	Unused planted fact: 'the personal guarantee provided by Rocky'	**Applied**
Examiner	III.C's reason only rebutted AMPL	**Applied**: 'because the Agreement created the term'
Examiner	Agency rule 'only if' excludes ratification	**Partly**: 'only' dropped; ratification itself not run (15 words)
Tracer	'agreed to the clause' should be 'the guarantee'; '[R]ecorded'	**Applied**: 'the guarantee'; sentence reworded to 'Likewise, 'recorded''

From	Finding	Disposition
Examiner	Word cuts: 'The next issue is' to 'The issue is'; shorter *Godecke*; drop I.B's signature hedge; shorter practical-benefit sentence; 'what the law implies'; 'shows the term'; split III.B	**Applied**
Examiner	Delete 'signed' from III.A's further information	**Rejected**: whether Rocky signed is genuinely unknown; the problem says only that Grace and AMPL signed
Examiner	'bound him first' to 'came first'; 'a specific undertaking' to 'an undertaking'	**Rejected**: less exact; the specificity of the undertaking is part of the intention argument
Examiner	Ratification (+15), 'Potential project' (+23), 'Please confirm agreement' (+5), II.E counter (+12), check-ins on formation (+13), scope flags (+23)	**Rejected**: the examiner's own view was that each costs more words than it gains

Mark history, read with care

v1X 87.5; v1Y 85; first final 89; P (v2) 82; Q 77; v6 84; v7 87, with the applied plan put at about 89. Each mark is a fresh agent with its own calibration, and the structure required changed between rounds, so the numbers are not a trend line. The comparable measure is certain errors: round R found 13 tracing problems; round S found none in law, facts, pins or quotations.

7. Judgment calls left in the final

Point	Why it stands as it does
I.A rests partly on Gibbs J's obiter in *Godecke*	Stated as 'doubted' and 'at least on a vital matter', matching his 'does not necessarily follow' and 'Perhaps'
Two readings of 'the clause'	The problem is ambiguous; both readings are run where they matter (II.D, III.A, III.B)
'the Agreement' for the Loan Agreement after first mention	Context ('signed', 'guarantor', 'term', 'recorded') shows which agreement; spelling it out would cost words
Expected verifier flags	*Sundell* 327 (the note prints '(at 327)'; the parser reads *Roscorla*'s page marker); *Niesmann* without its own pin (cited through *Masters*)
Pola citation form	Court confirmed as the Federal Court of Australia; kept in the unreported form the textbook gives, with the court added
'&' in business names	House choice, applied consistently; the checklist was updated to match
Roscorla parallel citation	The ER pinpoint is not in the materials, so only the report pin is given

8. Checks run on the exact text submitted

Verifier on final.md and on the .docx: 19 quotations, 0 FAIL, 1 expected CHECK, body 1,495. The .docx rendered to 6 pages with footnotes, italics, double spacing and page numbers intact. Body lint: no dashes, double quotation marks or contractions. Round S2, a focused cold check of the last edits and the renumbered footnotes, found no certain error; its one useful arguable point was applied without changing the word count, and both verifier runs were repeated afterwards.

Web sources used for citation details: Thomson Reuters, *Principles of Contract Law*, 7th edition (store.thomsonreuters.com.au/principles-of-contract-law-7th-edition/productdetail/131736); vLex, *Pola v Commonwealth Bank of Australia* (au.vlex.com/vid/pola-v-commonwealth-bank-807268305).